

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an application for Restitution,
in the nature of *Restitutio-In-Integrum* under
and in terms of Article 138 of the Constitution
of the Democratic Socialist Republic of Sri
Lanka.

Court of Appeal

Case No: RII/0021/2024

DC Kalutara

Case No: P/8647

Mohamed Ajward Athaullah
50, Weththimarajapurah,
Maradana, Beruwala.

Plaintiff

VS

1. Mohamed Ajward Mohamed,
Hilmy,
16/28, Nabaviya Mawatha,
Mosque Road, Beruwala.
2. Mohamed Ajward Mohamed
Akram Pasha.
83, Gorakaduwa,
Maradana, Beruwala.
3. Mohamed Ajward Fathimah
Makeena
22B, Arab Road,
Beruwala.
4. Mohamed Ajward Fathimah
Fahmiya
22B, Arab Road, Beruwala.
5. Mohamed Ajward Juwairiya
24/8, Saviya Road, Mahagoda,
Beruwala.

6. Mohamed Ismail Mohamed
Marsook
31, Bakir Markar Mawatha,
Maradana, Beruwala
7. Mohamed Marsook Mohamed
Mishkath
31, Bakir Markar Mawatha,
Maradana, Beruwala
8. Mohamed Marsook Mohamed
Minhaj
31 Bakir Markar Mawatha,
Maradana, Beruwala
9. Mohamed Marsook Fathimah
Masheena
31 Bakir Markar Mawatha,
Maradana, Beruwala
10. Mohamed Marsook Fathimah
Madiha
31 Bakir Markar Mawatha,
Maradana, Beruwala
11. Shahul Hameed Mohamed
Halimdeen
No. 72, Chinafort, Beruwala
12. Mohamed Ismail Marikkar
Mohamed Mawjood Marikkar
Shazuliya Road, Chinafort,
Beruwala.
13. Mohamed Kamaldeen
Mohamed Ajmal Sally,
No. 74 Chinafort, Beruwala.
14. Mohamed Kamaldeen
Mohamed Ashfan
No. 74 Chinafort, Beruwala

15. Nation Trust Bank PLC
No. 242, Union Place, Colombo 02.

AND

**In the matter of an application in terms
Of Section 18 of the Civil Procedure Code**

Shahul Hameed Mohamed
Halimdeen
No. 72, China Fort,
Beruwala

11th Defendant-petitioner

Vs

Mohamed Ajward Athaullah
50, Wethhimarajapurah,
Maradana, Beruwela

Plaintiff-Respondent

AND NOW BETWEEN

Shahul Hameed Mohamed
Halimdeen
No. 72, Chinafort, Beruwala

11th Defendant-Petitioner-Petitioner

Vs

Mohamed Ajward Athaullah
50, Wethhimarajapurah,
Maradana, Beruwala.

Plaintiff-Respondent-Respondent

Before : R. Gurusinghe, J.
&
Dr. S. Premachandra, J.

Counsel : M.U.M. Ali Sabry PC, with Ruwantha Cooray,
Naamiq Nafath, Vimukthi Karunaratne and
Akash Raffeeek instructed by
Ramzi Bacha Associates
for the 11th Defendant-Petitioner-Petitioner

Argued on : 08-05-2026

Decided on: 30-06-2026

JUDGMENT

R. Gurusinghe, J.

The plaintiff-respondent (The Respondent) instituted Partition Action bearing no. P/8647 in the District Court of Kalutara by plaint dated 07-12-2023, seeking the partition of the Land and Premises more fully described in the schedule annexed to the plaint.

The petitioner was a party to the said partition action as the 11th defendant in the said action, on the basis of Deed of Transfer No. 4451 dated 07-02-2014, attested by G.G. Arulpragasam, Notary Public of Colombo, which was produced and marked in the District Court as '33-33'. The petitioner was further made a party to the proceedings on the allegation that the petitioner had unlawfully been constructing a building upon the land sought to be partitioned.

The respondents obtained an Enjoining Order and a Notice of Injunction against the petitioner on 11-12-2023. The petitioner then filed objections to the application for injunction. In his objections, the petitioner averred that he had sold his interest in the subject matter of the action to Deebro Holdings (Pvt) Limited by Deed of Transfer No. 243 dated 06-12-2023, attested by Dhammika Jiminige, Notary Public. The petitioner further stated that he did not undertake any construction within the corpus sought to be partitioned, and he no longer possesses any right, title, or interest in the corpus at all. On that basis, he moved Court to discharge him from the Partition proceedings. The petitioner also stated that he is unable to comply

with the said Enjoining Order, as he no longer has any legal interests or rights in the corpus of the action.

Subsequently, the respondents applied to the District Court to add Deebro Holdings (Pvt) Limited as a party defendant to the action and to issue an Enjoining Order and a Notice of Injunction against Deebro Holdings (Pvt) Limited. Accordingly, the Learned District Judge of Kalutara directed Deebro Holdings Pvt Limited, to be added as the 16th defendant to the action and that an Enjoining Order and Notice of Injunction, to be issued against the said 16th defendant.

The application of the petitioner seeking to be discharged from the Partition Action was refused by the Learned District Judge of Kalutara, by order dated 14-02-2024, on the ground that the 11th defendant has mortgaged his rights in the subject property to the 15th defendant in the action, namely, Nations Trust Bank.

Aggrieved by the said Order, the petitioner filed the present application seeking to have the order dated 14-02-2024 set aside, which refused to discharge the petitioner from the proceedings in the Partition Action. The petitioner pleaded the following as exceptional grounds warranting the intervention of this Court, by exercising restitution jurisdiction.

- A. The said orders are contrary to law;
- B. Learned District Judge has failed to take cognizance of the fact that the Petitioner has alienated his title in the subject matter prior to the institution of the captioned action;
- C. Learned District Judge has erred in law in applying Section 18 of the Civil Procedure Code;
- D. Learned District Judge has misdirected himself in interpreting Section 5 of the Partition Law No. 21 of 1977 (as amended);
- E. Learned District Judge has failed to understand that the Petitioner is not a necessary party in terms of Section 5 of the Partition Law No. 21 of 1977 (as amended);
- F. Learned District Judge has erred in law in failing to determine that the Petitioner has no right title and interest in the subject matter;

- G. Learned District Judge has erred in law in failing to take cognizance of the fact that the Respondent has not established a prima facie case;
- H. Learned District Judge has erred in law in failing to take cognizance of the fact that the balance of convenience favours the Petitioner;
- I. Learned District Judge has erred in law in failing to take cognizance of the fact that the Respondent is not entitled to interim relief;
- J. Learned District Judge has erred in law in failing to determine that the Respondent having instituted the action against the wrong party, is not entitled to subsequently amend the Complaint and/or add a party;
- K. The impugned Orders of the Learned District Judge are contrary to the principles laid down in the case of *Don Alwis vs. Village Committee of Hiripitiya* 54 NLR 225.

The Learned District Judge refused the petitioner's application to be discharged from the Partition Action on the basis that a mortgage continued to subsist over the subject property and that the petitioner is required to remain a party to the Partition Action.

The petitioner produced Deed of Transfer No. 243 dated 06-12-2023 and proved that the petitioner had already divested himself entirely of all right, title, and interest in the subject matter before institution of the Partition Action. It is pertinent to note that the Partition Action was filed on 07-12-2023, one day after the execution of the said deed of transfer.

Necessary parties who are required to be joined to a partition Action are described in Section 5 of the Partition Law No. 21 of 1997 (as amended).

Section 5 of the Partition Law No. 21 of 1977 (as amended) is as follows:

- 5. The plaintiff in a partition action shall include in his plaint as parties to the action all persons who, whether in actual possession or not, to his knowledge are entitled or claim to be entitled –
 - (a) To any right, share or interest to, of, or in the land to which the action relates, whether vested or contingent, and whether by way of mortgage, lease, usufruct, servitude, trust, life interest, or otherwise, or

(A) To any improvements made or effected on or to the land:
Provided that in the case of a mortgage, the mortgagee or any person claiming any interest under him shall be included as a party only if he has registered an address for service of legal documents in terms of sections 6 and 28 of the Mortgage Act;

Provided further that if such mortgagee or person aforesaid claims under an instrument executed more than fifteen years prior to the institution of the action, he shall not be a necessary party to such action, unless he has registered an address for service of legal documents in terms of the aforesaid provisions of the Mortgage Act within a period of ten years prior to the date of institution of the action.

The petitioner is neither a co-owner of the subject property nor a person presently possessing any. The petitioner has no right, share or interest in the corpus of the Partition Action. The material placed before Court indicates that the petitioner had divested himself of all right, title, and interest in the property prior to the institution of the action.

It is clear from the provisions of Section 5 of the Partition Law that the petitioner is not a necessary party. The Learned District Judge was of the opinion that, because of the subsisting mortgage over the property, the petitioner should remain a party to the proceedings. However, since the petitioner has divested all his right, title and interest in the corpus, he cannot be a necessary party. With regard to a mortgage, the plaintiff should make the mortgagee or any other person who claims an interest under the mortgage the party to the action, only if an address is registered for service of legal documents, in terms of the provisions of Section 5 of the Partition Law.

In the case of Abeysekera vs Harmanis Appu 14 NLR353 the Supreme Court stated inter alia as follows;

Before considering these questions, it may be advisable to deal shortly with the history of the procedure by way of restitutio in integrum. Under the civil law, where a person suffered a legal prejudice by the operation of law, the praetor, having personally inquired into the matter (causaecognitio) in the exercise of his imperium, which enabled him to consider all the actual facts of the case, might issue a decree re-establishing the original legal position, that is to say; replacing the person injured in his previous condition. In Roman law,

restitutio in integrum was the removal of a disadvantage in law which had legally occurred. It was a protection against justice (as distinguished from an action against injustice), which was rendered necessary on account of the practical impossibility of taking legally, in advance, all the circumstances into consideration that in reality may occur. (Sohm's Institutes of Roman Law, s. 56, 111, Burge, 2nd ed., vol. 4, chap. 1.)

The decision of the Learned District Judge is erroneous and inconsistent with the provisions of section 5 of the Partition Law No. 21 of 1997. In consequence of the said decision, the petitioner suffered legal prejudice. Therefore, the petitioner is entitled to make this application.

The respondents have not filed any objection to the petitioner's application to discharge him from the proceedings. Although notices were issued on the respondents on several occasions, in the present application, none of the respondents appeared before the Court to oppose or contest the reliefs sought by the petitioner. The discharge of the petitioner from the Partition Action will not prejudice the rights of the other parties to the action.

In the above circumstances, the order of the District Court of Kalutara in case No. P 8647 dated 14-02-2024 is set aside. The Learned District Judge of Kalutara is directed to discharge the 11th defendant-petitioner from the partition Action P 8647.

Judge of the Court of Appeal.

Dr. S. Premachandra J.
I agree.

Judge of the Court of Appeal.